

ELIGIBILITY CRITERIA

CATEGORY

ELIGIBILITY CRITERIA FOR HIGH-PURITY GASES

1. This Invitation for Bids is open to all Original Manufacturers/ their Authorized Dealers/vendors/suppliers to quote on their behalf for this tender as per the Manufacturer's Authorization Form, and who possess the qualifying requirements as specified in the Tender document. **Please refer to Annexure-1**
2. Bidders Information. **Please refer to Annexure 2**
3. The Bidder should have the existence of the firm for a minimum period of 5 **Years** (Certificate of Incorporation/Registration Certificate of the firm) Please refer to **Annexure-3**
4. Copy of the PAN card of the firm.
5. The Bidder should have a Gas chromatograph, Moisture Analyser, Oxygen Analyser, Hydro-Carbon Analyser etc. machines in order to analyse the purity of gases. (List and details of machinery to be enclosed mandatory). **The committee may visit the eligible qualified bidder's company for inspection. The bidder can be disqualified if the committee finds their machines are improper for analysing the purity of gases.**
6. The Bidder must **not be blacklisted/Suspended/debarred** or any service-related dispute with any organisation/Govt. Organisations/banks in India or outside India or any litigation pending. Please refer to **Annexure A-4**.
7. **Experience** – The bidders should have experience in the execution of orders to any High Educational Research Institute or Govt. organisations for similar items. Copies of such order must be enclosed with the offer.- **Annexure-5**
8. Valid Explosive Licenses : The bidder must have a Valid Explosive License certificate for all the Industrial Gases on the Rate contract for manufacturing and storing till safe delivery of industrial gases.
9. **Local Content Certificate:-** TIFR intends to give product reservation to local suppliers in line with current procurement policies of Govt. of India. For the above purpose, local supplier means a supplier or service provider whose product or service offered for procurement meets the minimum local content as prescribed in "Public Procurement (Preference to Make in India) order 2017 of GOI, Dept. of DIPP" (OM No. P-4502112/2017-PP (BE-II) dated 04th June, 2020.
Necessary certification for local content must be submitted by the prospective bidders strictly as per attached annexure with the tender document. Please refer **Annexure-**

SECTION 3

INSTRUCTIONS TO BIDDERS

1. **Bidders should quote for all the items of the tender document.**
2. **Bidders have to mention impurities of gases in their bid document. The committee will finalize the impurities submitted by all bidders in their bid document.**
3. Quoting of Price (s) : Price quoted should be in Indian Rupees, with free pick up & delivery at Tata Institute of Fundamental Research, Colaba Mumbai – 400 005.
Prices must be inclusive of transportation cost and other charges.
4. Any bidder currently engaged in litigation with other Organizations, must inform their status in writing.
5. Communication with bidders will be carried out electronically and /or in hard copy. All bidders must provide their current E-mail address.

A) VALIDITY OF THE BID : 180 Days from the date of submission of bid.

B) AMENDMENT OF BIDDING DOCUMENTS :

1. At any time before the deadline for submission of bids, TIFR, Mumbai may for any reason, whether on its own or in response to the clarification request by a prospective BIDDER may modify the bid document.

C) CONFIDENTIALITY :

1. Information relating to the evaluation of Bids, and recommendation of Contract award, shall not be disclosed to Bidders or any other persons not officially concerned with such process until information on Contract award is communicated to all Bidders.
2. Any attempt by a Bidder to influence the Purchaser in the evaluation of the Bids or Contract award decisions may result in the rejection of its Bid.

D) EVALUATION OF BID :

1. TIFR Mumbai will evaluate the bid offers on a landed net Price basis.
2. Offer which deviates from the vital conditions (as illustrated below) of the tender shall be rejected:
 - a) Non- submission of complete offers.
 - b) Receipt of offers after the due date and time and or by email/fax (unless specified otherwise).
3. In case any BIDDER is silent on any clauses mentioned in this tender document, TIFR, Mumbai shall construe that the BIDDER had accepted the clauses as per the invitation to tender no further claim will be entertained.
4. No revision in the terms and conditions quoted in the offer will be entertained after the last date and time fixed for receipt of tenders.
5. **The tender will be taken as inclusive of all Taxes if nothing is stated by the firm.**
6. If the supplier wish to give pricing details it may be attached in a separate sheet.
7. The quantity mentioned in the tender can be increased or decreased to any extent depending upon the actual requirement.

E) CORRUPT & FRAUDULENT PRACTICES:

1. TIFR Mumbai requires that bidders, suppliers, contractors and consultants, if any, observe the highest standard of ethics during the procurement and execution of such contracts. In pursuit of this policy,
 - (a) The terms set forth below are defined as follows:
 - “Corrupt practice” means the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence the action of a public official in the procurement process or in contract execution;
 - “Fraudulent practice” means a misrepresentation or omission of facts in order to influence a procurement process or the execution of a contract;
 - “Collusive practice” means a scheme or arrangement between two or more bidders, designed to establish bid prices at artificial, non- competitive levels; and
 - “Coercive practice” means harming or threatening to harm, directly or indirectly, persons or their property to influence their participation in the procurement process or affect the execution of a contract;
 - (b) TIFR Mumbai will reject a proposal for award if it determines that the Bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive or coercive practices in competing for the Contract in question.

F) CANCELLATION OF TENDER :

1. Notwithstanding anything specified in this tender document, TIFR Mumbai in his sole discretion, unconditionally and without assigning any reasons, reserves the rights:
 - a) To accept OR reject lowest tender or any other tender or all the tenders.
 - b) To accept any tender in full or in part.
 - c) To reject the tender offer not confirming to the tenders terms.
2. If the quality of the product and service provided is not found satisfactory, TIFR Mumbai reserves the right to cancel or amend the contract.

G) DELIVERY :

- A) The successful BIDDER should deliver the material as per the terms and conditions of the tender document/purchase order.
- B) Please provide purity certificate along with the material.

F) General Technical Specification: -

1. Please supply material as per the specifications mentioned in the ATC
2. This quantity ordered will have to be supplied for 12 months from the date of release of the purchase order in several instalments, as and when needed by the institute, to our Colaba, Mumbai Campus.
3. Delivery period will be **within shortest possible time or at least within 1-2 days of our advance intimation**. The delivery is to be strictly made as per the delivery schedule stated in the Purchase Order.
4. In case of any clarification regarding submission of bids please contact Shri. Harshad B Bhilare Tel: 022-22782886, Shri. Vinayak Rathod (dealing members) Tel: 022- 2278 2898/99 or Shri Deepak Baghele, Purchase Officer (Tel: 022- 22782890). Also, you may

contact Ms. Sumthi Tel 022 2278 2076/2503 email id sumasuresh@tifr.res.in TIFR, Mumbai 400005 for any technical clarifications.

5. The delivery address of the material as below: -

**To,
The Purchase Officer,
TIFR, Homi Bhabha Road,
Navy Nagar, Colaba, Mumbai-400005.
Phone No.022- 22782069**

ADMINISTRATIVE OFFICER
(PURCHASE SECTION)
TIFR, MUMBAI

SECTION 4 – TERMS AND CONDITIONS

A) AWARD OF CONTRACT :

1. Further, TIFR reserves the right to bring multiple parties under the rate contract subject to their matching of the rate with that of the L1 bidder.
2. The Empaneled suppliers will abide by all the Terms & Conditions of the Tender Document.
3. The Performance of the empanelled suppliers will be reviewed by the committee during the contract period and TIFR, Mumbai reserves the right to add or delete suppliers in the rate contract based on performance if necessary without intimation.
4. The tendering firms must confirm in their tender that it will be their responsibility to possess valid Explosive Licenses for all Industrial Gases on the Rate contract for manufacturing and storing till safe delivery of industrial gases to the TIFR, Mumbai entire operation of the rate contract.
5. Manufacturer's Test Certificate and Purity Certificate are to be submitted along with every supply.
6. Transit Insurance Clause: The purchaser will not pay separately for transit insurance and the supplier will be responsible till the entire stores contracted for, arrive in good condition at the destination. The transit risk in this respect may be covered by the supplier by getting the stores duly insured if he so desires. The supplier in his name and not in the name of the consignee shall obtain the insurance cover.
7. The supplier has to supply cylinders as per requirement of the stores department.

B) EARNEST MONEY DEPOSIT:

1. Earnest Money Deposit (EMD) of Rs. 27190 /- (Rs. Twenty Six Thousand One Hundred Only) in the form of Demand Draft in the favour of 'TATA INSTITUTE OF FUNDAMENTAL RESEARCH' payable at Mumbai to be submitted in the Bid. Failing which, the submitted bid will be Rejected.
2. EMD of unsuccessful bidders will be returned within 30 days after the award of the contract.
3. EMD of a tenderer will be forfeited, if the tenderer withdraws or amends its tender or derogates from the tender in any respect within the period of validity of its tender. Further, if the successful tenderer fails to furnish the required performance security within the specified period, its EMD will be forfeited.
4. In case there is loss or damage to the material or unsatisfactory services provided to TIFR, Mumbai by the bidder then such losses will be adjusted from the Security deposit.

C) Performance Bank Guarantee:

Successful bidders will have to submit **Security Deposit @ 5% of the contract value** within 15 days from the date of placement of order in the form of Bank Guarantee. The PBG will be valid for a period of 60 days beyond the date of contractual obligations. The security amount will be forfeited if the Firm / Supplier fail to perform as per the terms & conditions of our Tender enquiry / document.

D) Payment Terms:

100% Payment will be made within 30 days from the date of submission of the bill for the supplied gas.

E) Standing order and withdrawal:

The TIFR, Mumbai will issue a Standing order for the entire period of the rate contract mentioning the required quantity. The delivery of refilled cylinders should be as per the Stores department instructions/requisition.

F) PENALTY :

Supplier should provide Purity Certificate for each cylinder and if gas cylinder not found comply with the certificate then actual damage will be recovered as penalty.

Timely delivery is the essence of the contract and hence if any consignment is delayed then liquidated damages at the rate of 0.5% of the price of the delayed consignment, for each week or part whereof shall be levied and recovered subject to a maximum of 5% of total purchase order value.

G) **FORCE MAJEURE:** Force Majeure will be accepted on adequate proof thereof.

H) **LEGAL MATTER:** Jurisdiction of Mumbai Courts only. In the event of any dispute over this contract, TIFR, Mumbai's decision shall be final and binding.

I) OTHER TERMS AND CONDITIONS:

1. The Bidder must supply all the items listed in the Category.
 2. The vendors will collect the empty cylinders and deliver the refilled cylinders to TIFR, Mumbai Central Stores department without any extra charges.
- In the event of any dispute over this contract, TIFR, Mumbai's decision shall be final and binding.

Contract period is from 01/06/2026 to 31/03/2027. Any query please contact Ms. Sumathi 022 22782076., sumasuresh@tifr.res.in

Annexure - 1

MANUFACTURERS' AUTHORIZATION FORM

No. _____

Date: _____

Director,

Tata Institute of Fundamental
Research, HomiBhabha Road, Navy
Nagar, Colaba, Mumbai – 400 005.

Dear Sir:

We _____ who are established and reputable manufacturers of having factories/works at (address) do hereby authorize M/s (Name and address of Agent) to submit a bid, negotiate and receive the order from you against your tender enquiry mentioned on front page.

No company or firm or individual other than M/s _____ is authorized to bid, and conclude the contract in regard to tender.

We hereby extend our support to the Conditions of Contract and for the goods and services offered by the above firm.

Yours faithfully,

(Name)

(Name of manufacturers)

Note: This letter of authority should be on the **letterhead of the manufacturer** and should be signed by a person competent and having the power of attorney to bind the manufacturer. It should be included by the Bidder in its techno-commercial unpriced bid.

SECTION 5 – BIDDER'S INFORMATION

1.	Name of the Bidder	
2.	Address of the Bidder	
3.	Status of the Company (Public Ltd./ Pvt. Ltd.)	
4.	Details of the Incorporation of the Company	Date:
		Ref. Document-
5.	Valid GSTN No.	
6.	State of Registration	
7.	Permanent Account No. (PAN)	
8.	Name & Designation of the Contact person to whom all references shall be made regarding this tender	
9.	Telephone No. (with STD Code)	
10.	Email Address of the contact person	
11.	Fax No. (with STD Code)	
12.	Website	

Certificate of Registration

No. _____

Date: _____

The Director,

**Tata Institute of Fundamental Research,
HomiBhabha Road, Navy Nagar, Colaba,
Mumbai – 400 005.**

Dear Sir:

I/We _____ who are established and reputed
manufacturers/bidders of _____ having
factories/works at

_____ (address) do hereby declare that “I/We
have read the clause regarding restrictions on procurement from a bidder of a country which
shares a land border with India as per tender clause 6.4 of GCC. I/We hereby certify that we
the undersign Bidder are not from such a country or, if from such a country, has been
registered with the Competent Authority. I/We hereby certify that we fulfill all requirements
in this regard and is eligible to be considered. [where applicable, evidence of valid registration
by the Competent Authority shall be attached]

Yours faithfully,

(Name of manufacturers/ Bidder)

**Note: This Certificate/Undertaking should be on the letterhead of the
manufacturer/Bidder and should be signed by a person competent and having the power
of attorney to bind the manufacturer. It should be included by the Bidder in its techno-
commercial un-priced bid**

DECLARATION REGARDING CLEAN TRACK BY BIDDER

(On Company/firm's Letterhead)

To,

Date :

The Director,

TATA INSTITUTE OF FUNDAMENTAL RESEARCH,

HOMI BHABHA ROAD, COLABA,

MUMBAI- 5

Re: Tender No.TIFR/PD/CM26 for “Annual Rate contract for supplying & refilling various Gases & Gas Cylinder”

I/we carefully gone through the Terms & Conditions contained in the above referred tender. I/we hereby declare that my company / firm is not currently debarred / black listed or no legal case pending by any Government / Semi Government Organizations / Institutions in India or abroad. I/we further certify that I'm competent officer in my company /firm to make this declaration.

Or

I/we declare the following

No.	Country in which the company is debarred / blacklisted / case is pending	Black listed / debarred by Government / Semi Government Organizations / Institutions	Reason	Since when and for how long

(NOTE : In case the company / firm was blacklisted previously, please provide the details regarding Period for which the company / firm was blacklisted and the reason/s for the same)

Yours faithfully

(Signature of the Bidder) Printed Name Designation Seal

ANNEXURE-5**EXPERIENCE DETAILS**

(On Company / firm's Letterhead)

To,

Date :

The Director,

TATA INSTITUTE OF FUNDAMENTAL RESEARCH,

HOMI BHABHA ROAD, COLABA,

MUMBAI- 5

Re: Tender No. for No.TIFR/CM26 “Annual Rate contract for supplying & refilling various Gases & Gas Cylinder”

I/we hereby mention following list of our clients where our firm had provided our materials timely and in good condition. (Supported by copy of Purchase orders/work orders for your reference :

Sr. No.	Name of Client	Purchase Order No. & Date	Amount of P. O.	Short Description of items supplied	Contact Person & Telephone No.

Yours faithfully,

(Signature of the Bidder)

Printed Name

Designation

Seal Date :

Business Address :

Encl : As above

Annexure - 6

Certificate for Local Content

*We [name of manufacturer] hereby confirm in respect of quoted item(s) that Local Content is equal to or more than 50% and come under 'Class-I Local Supplier' Category. As being 'Class-I Local Supplier', we are eligible for Purchase Preference under 'Make in India' Policy vide Gol Order No.P-45021/2/2017-PP (B.E.-II) dated 15.06.2017 (subsequently revised vide orders dated 28.05.2018, 29.05.2019 and 04.06.2020)

OR

*We [name of manufacturer] hereby confirm in respect of quoted items(s) that Local Content is more than 20% but less than 50% and come under 'Class-II Local Supplier' Category.

The details of the location (s) at which the local value addition made is /are as under:

1.....

2.....

3.....

*Strike out whichever is not applicable

Date:

Seal & Signature of the Bidder

NOTE:

- Self-certification that the item offered meets the minimum local content (as above) giving details of the location(s) at which the local value addition is made in case the bidder wishes to avail the benefits under the make in India policy, if applicable.
- In cases of procurement for a value in excess of Rs. 10 crores, the local supplier shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content to avail the benefits under the make in India policy, if applicable.

SECTION 6 – HIGH PURITY GASES Technical Specification:-

<u>Sr.No</u>	<u>Item Description</u>	<u>Qty of Cyl</u> <u>(A)</u>
1	UHP Argon (capacity of cylinder 360 Cyl : 7Cum)	360
2	Commercial Nitrogen Gas Cylinder (capacity of cylinder 270X 7 Cum)	270
3	UHP Oxygen Gas (capacity of cylinder 25 X 7 Cum)	25
4	Commercial Oxygen gas cylinder (capacity of cylinder 108 X 7 Cum)	108
5	UHP Nitrogen Gas (capacity of cylinder 216 X 7 Cum)	216
6	Carbon Dioxide Gas (50 KG)	50
7	DA Gas Cylinder (cap of cylinder 7 Cum) Dissolved Acetylene	8

Bid Securing Declaration

(to be submitted on the company's letterhead)

I/We the undersigned hereby declare that if we withdraw or modify the bids during the period of its validity, or if we are awarded the contract and fail to sign the contract or to submit a performance security before the deadline defined in the request for bids document or fail to execute the contract, we will be suspended for the period of time specified in the request for bids document from being eligible to submit bids for contracts with the entity that invited the bids.

Name and Signature

of Authorized Signatory

and Company Seal

Details of TIFR BANK Account

1	Vendor Name	TATA INSTITUTE OF FUNDAMENTAL RESEARCH
2	Address	Homi Bhabha Road , Colaba Mumbai 400 005
3	TAN	MUMT00026F
4	Particulars of Bank Account	Current Account
	Name of the Bank	Central Bank of India
	Name of the Branch	TIFR Branch
	Branch Code	03996
	City Name	Mumbai
	Branch Address	Homi Bhabha Road, Colaba, Mumbai 400 005
	Branch telephone No.	22804676
	Bank IFSC Code/SWIFT CODE	CBIN0283996
	9 Digit MICR code	400016111
	Type of account (S.B. , Current or Cash Credit) with code (010/011/013)	Current Account
	Account No. : (As appearing on the cheque book)	1451109280
K	Email address for notification of payment details	bhushan.khadapkar@tifr.res.in